



NSW Education Standards Authority

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Centre Number

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Student Number

2025 HIGHER SCHOOL CERTIFICATE EXAMINATION

Legal Studies

General Instructions

- Reading time – 5 minutes
- Working time – 3 hours
- Write using black pen
- Write your Centre Number and Student Number at the top of this page

Total marks: 100

Section I – 20 marks (pages 2–7)

- Attempt Questions 1–20
- Allow about 30 minutes for this section

Section II – 30 marks (pages 9–21)

This section has two parts, Part A and Part B

- Allow about 1 hour for this section

Part A – 15 marks

- Attempt Questions 21–23

Part B – 15 marks

- Attempt Question 24

Section III – 50 marks (pages 22–24)

- Attempt TWO questions from Questions 25–31, each from a different Option
- Allow about 1 hour and 30 minutes for this section

Section I

20 marks

Attempt Questions 1–20

Allow about 30 minutes for this section

Use the multiple-choice answer sheet for Questions 1–20.

- 1** In a court case, it is the responsibility of the prosecution to prove the accused is guilty.
- Which of the following does this refer to?
- A. Burden of proof
 - B. Standard of proof
 - C. Reasonable doubt
 - D. Presumption of innocence
- 2** Which of the following allows for individuals to decide the government of a nation?
- A. State sovereignty
 - B. Universal suffrage
 - C. Self-determination
 - D. Freedom of speech
- 3** Which of the following is an individual right stated in the Australian Constitution?
- A. Freedom of speech
 - B. Freedom of religion
 - C. Trial by judge-alone
 - D. Trade between the states
- 4** What is the maximum length of time, excluding break times, an adult suspect can be detained by NSW Police without being charged?
- A. Two hours
 - B. Ten hours only if approved by a court
 - C. As many hours as police need to gather evidence
 - D. Six hours initially and a further six hours if approved by a court

- 5 Bailey, who is 9 years old, has been detained by the police.

Which legal concept prevents police from charging Bailey?

- A. Court order
- B. Doli incapax
- C. Formal warning
- D. Binding precedent

- 6 Which of the following increases the likelihood of bail being granted for an indictable offence?

- A. Use of a weapon
- B. The length of time on remand
- C. A lengthy history of offending
- D. A risk of interfering with witnesses

- 7 If a Charter of Rights were to be included in Australia's Constitution, which of the following statements would be true?

- A. A referendum has occurred to adopt the Charter of Rights.
- B. The United Nations has approved the Charter of Rights.
- C. The Prime Minister has given assent to the Charter of Rights.
- D. NSW can pass valid legislation inconsistent with the Charter of Rights.

- 8 An offender is released from prison prior to the end of their sentence.

Which of the following best describes what has occurred?

- A. Continued detention has been imposed.
- B. A Community Corrections Order has been made by the Parole Board.
- C. An Intensive Corrections Order has been imposed to protect public interest.
- D. Parole has been granted to enable ongoing supervision within the community.

- 9 Which of the following legal processes improves the resource efficiency of the criminal justice system?
- A. Jury trials and remand
 - B. Parole and protective custody
 - C. Legal aid applications and appeals
 - D. Police discretion and charge negotiation
- 10 Which of the following is the most significant barrier to developing the recognition of environmental rights?
- A. The economic self-interest of nation states
 - B. The United Nations not making this right a priority
 - C. International instruments not recognising this right
 - D. Failure of non-government organisations to enforce this right
- 11 If a state government were to mandate that pill testing be available at all music festivals, which of the following would this be an example of?
- A. Law reform to reflect changes to moral and ethical standards
 - B. The discretionary use of law enforcement powers for community safety
 - C. The Court of Criminal Appeal creating a guideline judgment to ensure fairness
 - D. Using warrants to address tension between individual rights and community standards
- 12 Jo, following instructions from Chris via 'live stream', enters a shop armed with a gun to commit a robbery. Alex drives Jo from the scene with cash stolen during the robbery.

Which row of the table correctly identifies the role and name(s) of the party/parties involved?

	<i>Role</i>	<i>Name(s)</i>
A.	Principal in the first degree	Alex only
B.	Principal in the second degree	Chris only
C.	Principals in the first degree	Jo and Chris
D.	Principals in the second degree	Jo and Alex

13 Sam admitted criminal offending but raised a defence.

What does this mean for Sam?

- A. Sam must exercise the right to silence.
- B. Criminal culpability needs to be determined.
- C. Sam will be found guilty of a reduced charge.
- D. The sentence will now be decided by the jury.

14 Which of the following is a key difference between a trial by jury and a judge-alone trial?

- A. A judge must provide reasons for the verdict.
- B. A judge-alone trial is less likely to result in an acquittal.
- C. Only a jury can decide if the victim has received justice.
- D. A jury is better equipped to resolve complex and prejudicial issues.

15 Which of the following is an example of restorative justice?

- A. A violent offender avoiding prosecution by pleading guilty
- B. The offender and victim meeting to reflect on the offending
- C. Achieving justice for victims through social crime prevention
- D. An offender cooperating with authorities to improve resource efficiency

16 Which row of the table correctly identifies the legal institution and its responsibility?

	<i>Legal institution</i>	<i>Responsibility</i>
A.	Corrective Services NSW	Deciding security classifications for offenders
B.	NSW State Parole Authority	Providing eligible parties with financial support
C.	NSW Police	Prosecuting indictable offences in the District Court
D.	Legal Aid	Funding matters about property damage to any property caused by a motor vehicle

- 17** Which of the following is the main concern regarding the effectiveness of forfeiture of assets as a crime deterrent?
- A. The costs of processing the orders outweigh the value of assets seized.
 - B. It fails to ensure all seized assets are used to support community programs.
 - C. There is limited evidence that asset forfeiture significantly deters criminal activity.
 - D. It is criticised for sometimes targeting low-level offenders instead of major criminals.

- 18** Police legally enter an adult suspect's home.

Which of the following is correct?

- A. Consent from the suspect is mandatory.
- B. The suspect has waived the right to legal advice.
- C. Judicial oversight of police powers has occurred.
- D. All property seized by police is admissible evidence.

- 19** Consider the following hypothetical scenario.

A state government mandates that only a particular type of crypto-currency can be used as legal tender in that state.

Which legal doctrines are best invoked by the Federal Government to challenge this decision in the High Court?

- A. Separation of Powers and Rule of Law
- B. Division of Powers and procedural fairness
- C. Rule of Law and parliamentary independence
- D. Separation of Powers and Division of Powers

- 20** A jury found Kim guilty of fraud. Kim successfully appeals the conviction on the basis that prejudicial evidence was admitted into court.

Which of the following is correct?

- A. The Director of Public Prosecutions must now agree to a retrial.
- B. The NSW Supreme Court found that jury misconduct had occurred.
- C. The Public Defender was required to represent Kim in the appeal process.
- D. The NSW Court of Criminal Appeal accepted the trial was procedurally unfair.

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Centre Number

Legal Studies

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Student Number

Section II Answer Booklet

30 marks

Allow about 1 hour for this section

Instructions

- Write your Centre Number and Student Number at the top of this page
- Use this answer booklet for Section II ONLY
- Answer BOTH Part A and Part B
- Follow the instructions inside this booklet as to where you should write your answers

Please turn over

Section II

Part A – Human Rights

15 marks

Attempt Questions 21–23

Answer the questions in the spaces provided. These spaces provide guidance for the expected length of response.

Question 21 (3 marks)

How has the recognition of peace rights changed over time?

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Question 22 (5 marks)

Explain how the media influences changes in human rights. Include examples in your answer.

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End of Section II Part A

Turn over for Section II Part B

Section II Part B — Answer Question 24 on pages 14–19

24

Question Number

Do NOT write in this area.

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Do NOT write in this area.

Do NOT write in this area.

If you require more space to answer Section II Part B, you may ask for an extra writing booklet.

If you have used an extra writing booklet for Section II Part B, tick here.

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Legal Studies

Section II (continued)

Part B – Crime

15 marks

Attempt Question 24

Answer the question on pages 14–19 of the Section II Answer Booklet. Extra writing booklets are available.

Your answer will be assessed on how well you:

- demonstrate knowledge and understanding of legal issues relevant to the question
 - communicate using relevant legal terminology and concepts
 - refer to relevant examples such as legislation, cases, media, international instruments and documents
 - present a sustained, logical and cohesive response
-

Question 24 (15 marks)

Analyse how Australia's criminal legal system operates to protect community interests. In your answer, refer to legal measures to combat both transnational and domestic crimes.

Section III — Options

50 marks

Attempt TWO questions from Questions 25–31, each from a different Option

Allow about 1 hour and 30 minutes for this section

Answer both questions in the Section III Writing Booklet. Extra writing booklets are available.

Your answers will be assessed on how well you:

- demonstrate knowledge and understanding of legal issues relevant to the question
 - communicate using relevant legal terminology and concepts
 - refer to relevant examples such as legislation, cases, media, international instruments and documents
 - present a sustained, logical and cohesive response
-

Question 25 — Consumers (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to consumers?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes for consumers. In your answer, you must refer to at least ONE contemporary issue. **25**

Question 26 — Global Environmental Protection (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to global environmental protection?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes for the global environment. In your answer, you must refer to at least ONE contemporary issue. **25**

Question 27 — Family (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to families?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes for families. In your answer, you must refer to at least ONE contemporary issue. **25**

Question 28 — Indigenous Peoples (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in regard to laws relating to Indigenous Peoples?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes for Indigenous Peoples. In your answer, you must refer to at least ONE contemporary issue. **25**

Question 29 — Shelter (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to shelter?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes for people seeking and providing shelter. In your answer, you must refer to at least ONE contemporary issue. **25**

Please turn over

Question 30 — Workplace (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to the workplace?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes in the workplace. In your answer, you must refer to at least ONE contemporary issue. **25**

Question 31 — World Order (25 marks)

- (a) ‘Non-compliance challenges the effectiveness of the law.’ **25**

To what extent is this statement accurate in relation to world order?

OR

- (b) Assess the interrelationship between changing community values and the achievement of just outcomes in promoting peace and resolving conflict. In your answer, you must refer to at least ONE contemporary issue. **25**

End of paper